Turnage, Kevin D. (IHS/PHX)

From: Durr, Tracey L (IHS/HQ)
Sent: Thursday, December 29, 2022 10:22 AM
To: Turnage, Kevin D. (IHS/PHX)
Subject: Re: Retaliation and Discrimination

Ok, I see - this is a management inquiry, which is why I have no previous knowledge. I process regular EEO complaints (formal) for the Phoenix area, but the inquiries are kept separate from those. I'll contact the outside firm to see what the status of the inquiry is.

Which EEO Office sent the letter to initiate the detail? To whom was the detail request made? Are you this individual's supervisor? My apologies for asking questions you have probably answered several times, but hopefully, I can reach out to people that might be able to get things moving. If I can't get something started today or tomorrow, Ms. Porter (who will be back from leave next week) and I can work toward a resolution for you.

Again, thanks for reaching out and thank you for your continued patience.

Tracey L. Durr
Senior EEO Specialist
Indian Health Service
5600 Fishers Lane
Rockville, MD 20857

301-443-5057 (Phone)
301-443-0096 (Fax)

From: Turnage, Kevin D. (IHS/PHX) <Kevin.Turnage@ihs.gov>
Sent: Thursday, December 29, 2022 12:10 PM
To: Durr, Tracey L (IHS/HQ) <Tracey.Durr@ihs.gov>
Subject: RE: Retaliation and Discrimination

I initially reported the claims to George Patton on July 25, 2022 the three complaints were against Tonie Greve from Elizabeth Hill, Bertha Edison, and Brenda Barr. I also received a verbal complaint from a contract RN. I know that Angela Dickerson was doing the investigation. The results of which were supposed to be completed within 15 business days. To date it has been 158 days since the complaint. Even though EEO office sent letter to detail person out of the department she has remained and continues. These employees are already stating they are calling lawyers because the agency has failed to provide a hostile free work environment. I have numerous emails regarding this issue asking administration why this individual allowed to continually harass employees with nothing being done about it.

V/r

Hon. Kevin Turnage MSN Ed. RN, AMB-BC, NHDP-BC, NPD-BC

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From: Durr, Tracey L (IHS/HQ) <Tracey.Durr@ihs.gov>
Sent: Thursday, December 29, 2022 9:35 AM
To: Turnage, Kevin D. (IHS/PHX) <Kevin.Turnage@ihs.gov>
Subject: Re: Retaliation and Discrimination

Good morning, Mr. Turnage,

I am in receipt of your email regarding your concerns at PIMC. In order to assist you, I'll need a bit more information. Specifically, can you provide me with names, case numbers, or anything that I can use to research our records for more information?

Thank you again for reaching out. I look forward to hearing from you. Have a good day.

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From: Turnage, Kevin D. (IHS/PHX) <Kevin.Turnage@ihs.gov>
Sent: Wednesday, December 21, 2022 5:05 PM
To: Fry, Jennifer (IHS/HQ) <Jennifer.Fry@ihs.gov>; Gyorda, Lisa (IHS/HQ) <Lisa.Gyorda@ihs.gov>; EEO Complaints and Adjudication <EEOComplaint-Adjud@ihs.gov>; Porter, Angela (IHS/HQ) <Angela.Porter@ihs.gov>
Cc: Tso, Roselyn (IHS/HQ) <Roselyn.Tso@ihs.gov>; Mann, Ramona (OS/ASA/EEODI) <Ramona.Mann@hhs.gov>; stan.pietrusiak@eeoc.gov <stan.pietrusiak@eeoc.gov>; EEO Complaints and Adjudication <EEOComplaint-Adjud@ihs.gov>; IHS DMEEO Staff <IHSDMEEOStaff@ihs.gov>; casework@schatz.senate.gov <casework@schatz.senate.gov>
Subject: Retaliation and Discrimination

To all concerned:

I want to know why the Phoenix Indian Medical Center and the Phoenix Area Office are allowed to not follow EEO laws including not meeting timelines, why they are allowed to consistently not complete investigations for EEO complaints. Why one person is consistently treated different from any other employee at the Phoenix Indian Medical Center. The employee has currently four hostile work environment claims against her and the agency for well over 90 days slow rolled the investigations. Then the agency wants to detail me a male over the age of 40 with disabilities out of my department but not the other 4 female's nurse with hostile work environment claims that the agency was made aware of on July 21, 2022 - 153 days ago. As a certified whistle Blower by the Office of Special Counsel, I feel that this agency is retaliating and discriminating against me for being a whistle blower and for being male. The agency is blatantly, deliberately , and purposefully violating IHS policy on harassment, Indian Health Manual, EEO laws, HHS policies and procedures with no accountability from anyone. The issues here are toxic and illegal. The agency has failed on several fronts to meet the standards of the IHS anti-discrimination policy, the enforcement of the HHS Standards of conduct 45 CFR Part 73 relating to EEO claims and processes. Section 717 of Title VII requires federal agencies to take proactive steps to ensure equal employment opportunity for all their employees and applicants for employment. This means that agencies must work to proactively prevent potential discrimination before it occurs and establish systems to monitor compliance with Title VII. Agencies must regularly evaluate their employment practices to identify barriers to equality of opportunity for all individuals. Where such barriers are identified, agencies must take measures to eliminate

them. With these steps, agencies will ensure that all persons are provided opportunities to participate in the full range of employment opportunities and achieve to their fullest potential. This is blatantly not being done in the Phoenix IHS System. These complaints have been brought up at the facility level, Area level, EEO at area and the employees are being required to continue to work in hostile work environments with no actions taken by the agency. Ms. Tso sent an e-mail out on October 18, 2022 with this policy and the revised Indian Health Manual but Phoenix Area is not enforcing her guidance either. I have the e-mail chain regarding this very issue from August of this year. I will notify the agency that I have requested formal Congressional and Senate inquiries into these known and deliberate acts violating the laws, policies and manuals of IHS, HHS, the United States Code and the Code of Federal Regulations. Especially since there was no response from the agency on these issue to date thereby, preventing a major part of the Phoenix Indian Medical Center and Phoenix Area from completing the mission of IHS to raise the physical, mental, social, and spiritual health of American Indians and Alaska Natives to the highest level. Additionally I have requested that my elected representatives notify all Congressional and Senate committees that have jurisdiction over Indian health legislation, budget allocation or appropriation matters including the Senate Indian Affairs Committee. I hope that this time someone actually cares enough to look into these serious and blatant violations and puts processes in place to rectify these failures. I am more than happy to discuss with anyone and provide documentation of these ongoing issues.

Hon. Kevin D. Turnage RN, MSN Ed. AMB-BC, NHDP- BC, NPD-BC
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